

HOUSE BILL 1129

By Farmer

AN ACT to amend Tennessee Code Annotated, Title 54,
Chapter 1, relative to disaster-related exemptions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 54-1-128, is amended by adding the following as a new subsection:

(e) Notwithstanding this section, the restrictions on borrow pits under subdivisions (b)(1)(A)-(E) do not apply to temporary borrow pits used for a road work construction project performed in a FEMA-certified county under a contract for construction work entered into with the state that is part of a state or local Hurricane Helene recovery effort. For purposes of this subsection (e), "FEMA-certified county" means a county included in a declaration made on or after September 26, 2024, and prior to October 3, 2024, for a disaster certified by the federal emergency management agency (FEMA).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.